

or other person, if considered necessary for conducting such sale, together with the particulars and conditions of sale which shall be contained in one state of facts and proposal and be proceeded upon together except in cases where the Master shall see fit to direct otherwise, and further that no report of the appointment of an Auctioneer or other person to sell shall be necessary, but the Master shall, if required, certify that he has made such appointment, which certificate shall not require to be settled by warrants or otherwise.

That every person, not being a party in any cause, who has obtained an Order or in whose favour an Order shall have been made, shall be entitled to enforce obedience to such Order by the same process as if he were a party to the cause. And every person, not being a party in any cause, against whom obedience to any Order of the Court may be enforced, shall be liable to the same process for enforcing obedience to such Order as if he were a party to the cause.

The following English Orders appear to be still in force here, and may be useful to observe in practice.

That, where the same Solicitor is employed for two or more Defendants, and separate answers shall have been filed, or other proceedings had by or for two or more defendants separately, the Master shall consider in the taxation of such Solicitor's bill of costs either between party and party or between Solicitor and client whether such separate answers or other proceedings were necessary or proper; and, if he is of opinion that any part of the costs occasioned thereby has been unnecessarily or improperly incurred, the same shall be disallowed.

That every Master shall enter in a book to be kept by him for that purpose the name or title of every cause or matter referred to him, and the time when the Decree or Order is brought into his office, and the date and description of every subsequent step taken by him in the same cause or matter, and the attendance or non-attendance of several parties on each of such steps, so that such book may exhibit at one view the whole course of proceeding which is had before him in each particular cause and matter.

That, where a Master (a) is directed to settle a conveyance or to tax costs, in case the parties differ about the same, then the party claiming the costs or entitled to prepare the conveyance shall bring the bill of costs or the draught of the conveyance into the Master's office, and give notice of his having so done to the other party; and

(192).
February 1847.
As to parties
not on the
Record.

English Order.
3rd April,
1828.
Separate costs
of several
defendants.

English Order.
3rd April,
1828.
Master to enter
proceedings in
a book.

English Order.
3rd April,
1828.
Order 76.
(As amended
23rd Nov.
1831.)
Mode of pro-